

		rates]; see also <i>Margolin v. Regional Planning Com.</i> (1982) 134 Cal.App.3d 999, 1005 [evidence of fees awarded to counsel in other litigation is admissible and relevant, particularly in determining reasonable value of services rendered by public interest law firm that did not bill its clients].) Plaintiffs seek a multiplier of 1.25 (i.e., \$5,842.25). This simple lemon law case did not involve novel or complex issues nor did it require a high level of lawyering. Counsel has not established that this case prevented them from taking other work. Therefore, a multiplier is not warranted. The motion is granted. The Court awards \$27,032 in fees.
9.	TRAN VS. HN INJURY LAWYERS 2025-01485434	DEMURRER TO AMENDED COMPLAINT Defendants Hess & Nghiem, APC; Edward W. Hess, Jr.; and Phillip B. Nghiem’s Demurrer to the First Amended Complaint (“FAC”) is SUSTAINED with 20 days leave to amend. Defendants demur to the FAC and each cause of action on the grounds that they are barred by res judicata and the applicable statute of limitations. Defendants also contend the new allegations of misconduct in the FAC should be disregarded as sham pleading. Defendants’ request for judicial notice (ROA 40) is GRANTED. On 9/20/24, plaintiff Trung N. Tran filed a small claims action against Defendants (sued as “HN Injury Lawyers”) in Orange County Superior Court, case no. 30-2024-01426477 (“Small Claims Action”). (Request for Judicial Notice (“RJN”), Ex. 4.) In the smalls claims Complaint, Plaintiff alleged Defendant owed him \$5,000 because on 11/8/23, he approved the settlement of \$75,000 with the condition that he at least receive 30% of the settlement, but he only received \$17,500. (RJN, Ex. 4.) After trial, judgment was entered on 3/26/25, in Defendants favor finding that Defendants did not owe any money on Plaintiff’s claim. (RJN, Exs. 1-2.) The court concluded that “[t]he retainer agreement comports with California law governing contingent fee agreements. Plaintiff failed to meet his burden that he was misled.” (RJN, Ex. 2.) On 5/27/25, Plaintiff, in pro per, commenced this action against “HN Injury Lawyers”. The original Complaint, as supplemented by an accompanying filing titled “DECLARATION”, alleged breach of Attorney-Client Agreement, executed on 10/4/19, and fraud. (ROA 1, 6, ¶ 1, Ex. A.) Plaintiff alleged that because the underlying matter settled before any litigation commenced, he was entitled to a contingent fee of 33 1/3% under the agreement. (ROA 1, 6, ¶¶ 2-3, Ex. A.) Nevertheless, Defendants applied a 40% fee and imposed an extra legal fee of \$4,194 in breach of the agreement. (ROA 1, 6, ¶¶ 3-4, Ex. B.)